

23VECV02767 23VECV02767

County: los-angeles

Division: Civil Law and Motion

Department: U

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Case Number: 23VECV02767 Hearing Date: July 20, 2026 Dept: U

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF

LOS ANGELES - NORTHWEST DISTRICT

SOPHIA OLGA

MASLAKOVA, an individual,

Plaintiff,

vs.

SPI COLLINS COURT LLC, a limited

liability company; WARNER VILLA CO., a business organization, form unknown;

FPI MANAGEMENT, INC., a corporation; CHRISTIAN BENSON, an individual; HERTZ

VEHICLES LLC, a limited liability company; LYFT, INC., a corporation; WILMA

Z. GOLDMAN, an individual; and DOES 1-100, inclusive,

Defendants.

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CASE NO: 23VECV02767

[TENTATIVE] RULING RE: PLAINTIFF'S

MOTIONS TO TAX COSTS FROM DEFENDANTS LYFT, INC.'S, CHRISTIAN BENSON'S, AND
FPI MANAGEMENT, INC./5807 TOPANGA LLC'S COSTS MEMORANDUMS

Dept. U

8:30 a.m.

July 20, 2026

I.

BACKGROUND

This case is a personal
injury action arising from two separate incidents: a slip and fall at an
apartment complex on July 31, 2022, and a subsequent motor vehicle accident in
which Plaintiff was a Lyft passenger on April 7, 2023.

On June 26, 2023, Plaintiff Sophia Olga Maslakova filed her
complaint against Defendants SPI Collins Court, LLC ("SPI"); Warner Villa Co.
("Warner"); FPI Management, Inc. ("FPI"); Christian Benson ("Benson"); Hertz

Vehicles LLC ("Hertz"); Lyft, Inc. ("Lyft"); and Wilma Z. Goldman ("Goldman"), alleging: (1) general negligence against SPI, Warner, and FPI; (2) premises liability against SPI, Warner, and FPI; (3) motor vehicle negligence against Benson, Hertz, Lyft, and Goldman; and (4) general negligence against Benson, Hertz, Lyft, and Goldman.

On December 1, 2023, Plaintiff filed a form amendment, naming 5807 Topanga LLC ("Topanga") as DOE #1 in her complaint.

On December 26, 2023, Cross-Complainant Benson filed his cross-complaint against Cross-Defendant Goldman, seeking/alleging: (1) total equitable indemnity; and (2) comparative indemnity and contribution.

On June 3, 2024, Cross-Complainant Hertz filed its cross-complaint against Cross-Defendants FPI, Goldman, and Topanga, seeking/alleging: (1) indemnification; (2) apportionment of fault; and (3) declaratory relief.

On February 5, 2025, Plaintiff dismissed Hertz as a defendant from the complaint.

On August 8, 2025, the Court granted Plaintiff's attorneys' motion to be relieved as counsel. As of that date, Plaintiff has been proceeding as a self-represented litigant.[1]

On November 24, 2025, Benson filed his form amendments naming FPI as ROE #1 and Topanga as ROE #2 in his cross-complaint.

On January 12, 2026, the Court granted Benson leave to file a first amended cross-complaint, after which Benson filed his first amended cross-complaint (the "FACC") against Goldman, FPI, and Topanga, seeking/alleging: (1) total equitable indemnity; and (2) comparative indemnity and contribution.

On January 13, 2026, the Court conducted a mandatory settlement conference off the record. The case did not settle.

On January 30, 2026, Goldman filed her answer to Benson's FACC.

On March 9, 2026, the Court denied FPI and Topanga's motion to enforce a settlement previously entered with Plaintiff.

On April 23, 2026, the Court held a Final Status Conference and granted Lyft's motion to bifurcate the trial in this matter.

On April 27, 2026, a jury trial commenced.

On May 6, 2026, the jury returned a verdict, and the Court entered judgment against FPI and Topanga in favor of Plaintiff in the total amount of \$96,250.00. The Court also entered judgment against Plaintiff in favor of Benson, Goldman, and Lyft. The judgment notes that Defendants may seek their recovery of costs from Plaintiff.

On May 19, 2026, Goldman filed her costs memorandum, seeking \$33,449.97 in litigation costs.

On May 26, 2026, Plaintiff filed her costs memorandum, seeking \$13,792.87 in litigation costs.

On May 27, 2026, Lyft filed its costs memorandum, seeking \$27,329.89 in litigation costs.

Also on May 27, 2026, Benson filed his costs memorandum, seeking \$84,723.61 in litigation costs.

Also on May 27, 2026, FPI and Topanga filed their costs memorandum, seeking \$28,694.40 in litigation costs.

On June 1, 2026, Plaintiff filed her motion to tax Goldman's costs.

On June 3, 2026, Plaintiff filed her motion to tax Lyft and Benson's costs.

On June 5,
2026, Plaintiff filed her motion to tax FPI and Topanga's costs.

On June
18, 2026, Judge Anthony Mohr granted an ex parte application to stay
enforcement of the judgment pending a resolution of issues related to
litigation costs.

On June
22, 2026, Goldman filed her opposition brief as to Plaintiff's motion to tax
costs.

On July 2,
2026, Plaintiff filed a supplemental costs memorandum, seeking an additional
\$8,571.30 in litigation costs.

On July
10, 2026, the Court largely denied Plaintiff's motion to tax Goldman's costs
memorandum, but reduced Goldman's costs in the total amount of \$6,731.02.[2] (\$3,686.02 +
\$3,045.00 = \$6,731.02.)

On July 16 and July 17, Plaintiff filed supplemental
declarations purportedly related to the hearing on July 20, but instead appear
to constitute a request to reconsider the July 10 ruling, as well as to add
information potentially relevant to Plaintiff's requested costs against Goldman
which is set for hearing on October 6, 2026.

The Court will address these declarations with the parties at the
hearing, albeit here it provides its tentative ruling relating specifically to
the motions to tax costs on calendar for July 20.

LEGAL STANDARD

A prevailing party to any
action or proceeding is entitled to recover its costs for suit as a matter of
right.¿ Code Civ. Proc., § 1032 (b).¿ By submitting a
verified memorandum of costs, the prevailing party has provided prima facie evidence
of the proper costs of suit.¿ Adams v. Ford Motor Co. (2011)
199 Cal.App.4th 1475, 1486-1487 (Adams); Code Civ. Proc., § 1033.5
(c)(2).

II.

DISCUSSION

Plaintiff moves to tax costs claimed in Lyft's, Benson's, and FPI/Topanga's costs memorandums. The motion is granted in limited amounts, as explained herein.

a.

Plaintiff's

arguments that Lyft and Benson's 998 offers were defective are without merit.

Plaintiff disputes that Lyft and Benson are entitled to recover their costs because their 998 offer was overbroad; imposed non-monetary obligations; required Plaintiff's broad release of claims; demanded confidentiality, arbitration, indemnity, and liquidated damages; and was contingent on the Court's determination of good faith settlement.

"A section 998 offer that includes a dismissal with prejudice or the execution of a release as a settlement term is valid." *Menges v. Department of Transportation* (2020) 59 Cal.App.5th 13, 26 (*Menges*); see also *Hartline v. Kaiser Foundation Hospitals* (2005) 132 Cal.App.4th 458, 470 (*Hartline*) (998 offer for a dismissal with prejudice is valid without needing to include draft settlement with specific terms).

The Court has reviewed and considered the 998 offers at issue in this case. The subject 998 offers set forth a clear offer.

Plaintiff was offered sums of \$1,000.00, then \$25,000.00, then \$100,000.00 in exchange for dismissal and a release of all claims. (See Jones decl., ¶ 5, Exhs. A-D.) Such a straightforward proposal is a valid 998 offer.

The 998 offers issued by Lyft and Benson are facially valid. Plaintiff cites no legal authority to support her position that the 998 offers are invalid. The Court will not grant Plaintiff's motion to tax costs on this ground.

b.

Plaintiff's

arguments that FPI and Topanga's 998 offer was defective are similarly without merit.

Plaintiff disputes that FPI and Topanga are entitled to recover their costs because: (1) their 998 offer was not a straightforward monetary compromise; (2) the proposed compromise required a broad release of claims against affiliated third parties; (3) the proposed compromise included a confidentiality agreement; and (4) the proposed settlement was to be issued jointly to Plaintiff and her former counsel.

"A section 998 offer that includes a dismissal with prejudice or the execution of a release as a settlement term is valid." *Menges*, supra, 59 Cal.App.5th at p. 26; see also *Hartline*, supra, 132 Cal.App.4th at p. 470 (998 offer for a dismissal with prejudice is valid without needing to include draft settlement with specific terms).

Again, the Court has reviewed and considered the 998 offer at issue in this case. The subject 998 offer sets forth a clear offer.

Plaintiff was offered \$500,000.00 in exchange for dismissal and a release of all claims. (See *Firouzi* decl., ¶ 3, Exh. A.) Such a straightforward proposal is a valid 998 offer.

The 998 offer issued by FPI and Topanga is facially valid. Plaintiff cites no legal authority to support her position that the 998 offer is invalid. The Court will not grant Plaintiff's motion to tax costs on this ground.

c.

Plaintiff's

motion is granted as against Lyft in the total amount of \$3,045.00.

Lyft seeks the following \$27,329.89 in litigation costs:

\$555.00 for filing and motion fees; \$490.91 for jury fees; \$959.10 for deposition costs; \$12,351.50 for court reporter fees; \$1,930.56 for models, enlargements, and photocopies of exhibits; \$1,419.57 for electronic filing fees; and \$9,623.25 for "other" costs, consisting of counsel's mileage and parking charges for court appearances, mediation fees, and trial technology services provided by Magna Legal Services.

Plaintiff objects to Lyft's costs memorandum on grounds that: (1) Lyft has not substantiated its claimed costs; (2) Lyft has not given proof that its court reporter invoices were actually paid; that the court reporter services billed improperly include premium services, such as "realtime" and express transcripts; (3) Lyft's and Benson's court reporter invoices might overlap; (4) Lyft's and Benson's deposition costs might overlap; and (5) Lyft's and Benson's printing expenses might overlap.

As to Plaintiff's objection that Lyft's costs memorandum failed to adequately itemize and substantiate claimed expenses, the Court disagrees. Lyft's costs memorandum sufficiently itemizes each of the expenses claimed. Lyft's opposition brief includes additional explanations as to costs incurred. Lyft's opposition brief also includes assurances that court reporter costs and other expenses were actually incurred.

Lyft's counsel points out that Plaintiff utilized several of the documents created by court reporters in this case at no cost to herself due to her pro per status. (See Horiuchi decl., ¶¶ 10-14.) For purposes of ruling on Plaintiff's motion to tax costs, Lyft's evidence is sufficient to establish its expenses. See Adams, supra, 199 Cal.App.4th at pp. 1486-1487 (by submitting verified memorandum of costs, prevailing party has provided prima facie evidence of proper costs of suit).

As to Plaintiff's complaints that Lyft's and Benson's court reporter invoices, deposition costs, and printing expenses might overlap, Lyft's counsel's declaration specifies where costs were shared between Defendants and clarifies that the amounts specified are attributable solely to Lyft. This explanation of how costs were allocated is sufficient. See Adams, supra, 199 Cal.App.4th at pp. 1486-1487.

As to trial technology services provided by Magna Legal Services, the Court exercises its discretion to strike \$3,045.00 in requested costs (i.e., half the amount claimed by Lyft). (The Court notes that Lyft inadvertently included this amount under models and enlargements rather than under "other" costs. The Court elects to overlook this defect in the interest of judicial efficiency.)

In sum, Plaintiff's motion is granted as against Lyft in the total amount of \$3,045.00.

d.

Plaintiff's

motion is granted as against Benson in the total amount of \$10,857.50.

Benson seeks the following \$84,723.61 in litigation costs:

\$435.00 for filing and motion fees; \$640.91 for jury fees; \$2,154.10 for deposition costs; \$212.26 for service of process; \$46,999.99 for expert witness fees; \$7,812.50 in attorney fees for cost-of-proof sanctions under Code of Civil Procedure section 2033.420; \$13,886.50 for court reporter fees; \$6,726.28 for models, enlargements, and photocopies of exhibits; and \$5,856.07 for "other" fees, which are comprised of travel costs (hotel, flight, and Lyft rides) for counsel's attendance at final status conferences and trial, and for Benson's own travel to court for trial testimony.

Plaintiff objects to Benson's costs memorandum on grounds that: (1) Benson has not substantiated his claimed costs; (2) Benson has not given proof that his court reporter invoices were actually paid; (3) the court reporter services billed improperly include premium services, such as "realtime" and express transcripts; (3) Lyft's and Benson's court reporter invoices might overlap; (4) Lyft's and Benson's deposition costs might overlap; and (5) Lyft's and Benson's printing expenses might overlap.

The Court rejects the foregoing grounds for Plaintiff's motion for the same reasons identified in the prior section related to Lyft's costs memorandum. Benson's costs memorandum sufficiently documents claimed costs, and Benson's attorney's declaration includes supplemental documentation of costs claimed (except for a few minor filing and jury fees, for which the costs memorandum is itself prima facie evidence).

As to Benson's request for \$46,999.99 in witness fees, Plaintiff argues said fees should be taxed because she "questioned Defendants' experts during trial regarding their compensation and fees," and the experts "testified to substantially lower appearance fees than the" amounts now being claimed by Benson. (Motion, p. 8:10-14.) Plaintiff provides no specifics as to what the witnesses said they were being paid during their sworn

testimonies.

Benson explains that he “called two experts at trial: Ben Ewers, PhD, and Vu Le, MD. Each expert incurred fees over \$20,000 for their pre-trial work and trial testimony.” The Court agrees with Benson that “[t]hese fees are well within the common and customary expenses for experts” testifying at trial. (Benson Opposition, p. 6:2-5.) Benson’s attorney’s declaration includes invoices showing the amounts billed by Dr. Ewers and Dr. Le. (See Jones decl., Exh. J.) Work completed by Benson’s expert witnesses was reasonably necessary to the conduct of litigation. Though the \$46,999.99 itemized for expert witness fees is a high number, it is not unreasonable given the nature of this case and of the testimony provided.

As to Benson’s request for \$7,812.50 in attorney fees for cost-of-proof sanctions under Code of Civil Procedure section 2033.420, Benson explains that he has separately filed a motion to recover the same attorneys’ fees. Said request arises from Plaintiff’s denial of requests for admission. Because there is a separate motion pending regarding this request for attorneys’ fees, the Court disagrees with Benson that it would be appropriate to allow Benson to recover said fees with his other litigation costs. The Court will strike this amount from Benson’s costs memorandum without prejudice, i.e., Benson may still proceed with his separately pending motion for attorneys’ fees.

As to trial technology services provided by Magna Legal Services, the Court exercises its discretion to strike \$3,045.00 in requested costs (i.e., half the amount claimed by Benson).

In sum, Plaintiff’s motion is granted as against Benson in the total amount of \$10,857.50.
($\$7,812.50 + \$3,045.00 = \$10,857.50$.)

e.
Plaintiff’s motion is granted as against FPI and Topanga in the total amount of \$3,084.01.

FPI and Topanga seek the following \$28,694.40 in litigation costs: \$4,133.73 for filing and motion fees; \$490.91 for jury fees; \$1,001.80 for expert witness fees; \$14,341.50 for court reporter fees; \$2,637.32 for models, enlargements, and photocopies of exhibits; and \$6,089.14 for “other”

fees, comprised of their share of the Magna trial technology consultant's charges.

Plaintiff objects to FPI and Topanga's costs memorandum on grounds that: (1) FPI and Topanga have not substantiated their claimed costs; (2) their claimed court reporter fees are excessive; (3) joint trial binders were split equally between the parties, thus costs for exhibit binders should be taxed; and (4) Plaintiff cannot tell from FPI and Topanga's costs memorandum whether certain costs were reasonably necessary to the conduct of litigation.

The Court rejects the foregoing grounds for Plaintiff's motion for largely the same reasons identified in the prior sections related to Lyft's and Benson's costs memorandums.

FPI and Topanga's costs memorandum sufficiently documents claimed costs. Their attorney's declaration includes supplemental documentation of costs claimed (except for several filing and jury fees, for which the costs memorandum is itself prima facie evidence). Counsel for FPI and Topanga explains that a large portion of their trial binder costs was incurred because the Court required courtesy copies, and because Defendants needed to prepare supplemental binders after Plaintiff failed to properly meet and confer when preparing her own. (See Firouzi decl., ¶ 9.) FPI and Topanga's claimed costs thus appear reasonably necessary to the conduct of litigation.

As to the specific amount of costs for models, enlargements, and photocopies of exhibits, however, FPI and Topanga's exhibits show just \$2,598.31. (\$637.15 on April 15, 2026; plus \$963.97 on April 22, 2026; plus another \$212.69 on April 22, 2026; plus \$784.50 on April 30, 2026 = \$2,598.31.) That amount is \$39.01 short of the \$2,637.32 claimed on FPI and Topanga's costs memorandum. FPI and Topanga provide no additional invoice or explanation to account for the remaining \$39.01. The Court will thus strike \$39.01 from their costs memorandum.

As to trial technology services provided by Magna Legal Services, the Court exercises its discretion to strike \$3,045.00 in requested costs (i.e., half the amount claimed by FPI and Topanga).

In sum, Plaintiff's motion is granted as against FPI and Topanga in the total amount of \$3,084.01. (\$39.01 + \$3,045.00 = \$3,084.01.)

III.

CONCLUSION

Plaintiff's

motion to tax costs from Defendant Lyft, Inc.'s costs memorandum is GRANTED
in the total amount of \$3,045.00.

Plaintiff's

motion to tax costs from Defendant Christian Benson's costs memorandum is GRANTED
in the total amount of \$10,857.50.

Plaintiff's

motion to tax costs from Defendants FPI and Topanga's costs memorandum is GRANTED
in the total amount of \$3,084.01.

Defendant

Lyft, Inc. is ORDERED to give notice.

DATED: July 20, 2026

Lee

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Judge

of the Superior Court

[1] See *Harding v. Collazo* (1986)

177 Cal.App.3d 1044, 1056 (self-represented litigants held to same standards
applied to licensed attorneys); see also *Monastero v. Los Angeles
Transit Co.* (1955) 131 Cal.App.2d 156, 160-161 ("litigant is permitted
to present his own case, but, in so doing, should be restricted to the same
rules of evidence and procedure as is required of those qualified to practice
law before our courts").

[2] Because Plaintiff

paid just one (1) reservation fee, there is only one motion to tax costs set
for hearing despite Plaintiff having filed three (3) separate motions. On July 10, 2026, the Court ruled on only the

Goldman motion. Today, the Court rules
on the remainder of Plaintiff's motions, i.e., those addressing Lyft's,
Benson's, and FPI/Topanga's costs memorandums.